

Court No. - 37

Case :- WRIT - C No. - 43624 of 2017

Petitioner :- Jamal Abdul Qadir

Respondent :- Chief Engineer Vidyut Vitaran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Shyam Surat Shukla, Mohd. Ayyuq Hasan

Counsel for Respondent :- Awadhesh Kumar Saxena

Hon'ble Amreshwar Pratap Sahi, J.

Hon'ble Rajiv Lochan Mehrotra, J.

This petition appears to have been wrongly sent by the office before this Court as a mandamus has been prayed for settling a billing dispute for consumption of electricity. There is nothing on record to indicate that any consequential recovery proceedings have been initiated.

In such a circumstances this writ petition would not fall within the title of Recovery Matters and let the matter be placed before the appropriate Bench tomorrow as fresh.

Order Date :- 18.9.2017

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Chief Justice's Court

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Respondent :- Chief Engineer Vidyut Vitaran Nigam Ltd. And 3 Others

Counsel for Petitioner :- Shyam Surat Shukla, Mohd. Ayyuq Hasan

Counsel for Respondent :- Awadhesh Kumar Saxena

Hon'ble Dilip B. Bhosale, Chief Justice

Hon'ble Manoj Kumar Gupta, J.

Heard Mr. S.S. Shukla, learned counsel for the petitioner and Mr. Awadesh Kumar Saxena, learned counsel for respondent nos. 1 to 4.

Counsel for the petitioner submits that the petitioner is prepared to deposit 50% of the amount demanded vide bill dated 4.9.2017 within a period of two weeks from today after deducting the amount deposited by him after service of the impugned demand/bill. His statement is recorded and accepted. If the petitioner deposits the amount, as aforementioned, and raises a dispute in respect of the amount mentioned in electricity bill dated 4.9.2017, under the provisions of Section 6.5 of the Electricity Supply Code, 2005 within a period of two weeks therefrom, the same may be considered and dealt with on merits in accordance with law expeditiously. It is needless to mention that if the petitioner fails to raise the dispute, as aforementioned, it will be open to respondents to recover the entire amount in accordance with law. The moment petitioner deposits 50% of the amount, as aforementioned, the electricity connection, as prayed in the instant writ petition, be restored within three days therefrom.

The petition is, accordingly, disposed of.

Order Date :- 20.9.2017

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(M.K. Gupta, J)

(Dilip B Bhosale, CJ)